

25LBCV02171 25LBCV02171

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-11

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Case Number: 25LBCV02171 Hearing Date: August 11, 2026 Dept: S27

BACKGROUND

Plaintiff

filed this negligence and premises liability action against a number of private and public entities. He filed his operative first amended complaint (FAC) on January 27, 2026.

Two

defendants answered the FAC on March 3, 2026; Plaintiff failed to prove service of the complaint or FAC on a number of other defendants.

On

March 18, 2026, Plaintiff's counsel failed to appear for a Case Management Conference and OSC Re: Failure to File Proof of Service. The Court continued the Conference and OSC to April 15, 2026 and set a concurrent OSC Re: Plaintiff's counsel failure to appear, prosecute, dismissal, and sanctions.

On

April 15, 2026, Plaintiff's counsel again failed to appear. The Court noted that all parties still had not been served and ordered the complaint dismissed without prejudice.

On

May 15, 2026, Plaintiff applied ex parte for relief from dismissal based on his counsel's mistake, inadvertence, or neglect. Defendant Los Angeles Homeless Services Authority (LAHSA) opposed the issuance relief on an ex parte basis, but did not oppose the motion on its substance. On May 18, 2026, the Court set the application for hearing on ordinary notice on this

date.

Plaintiff's

application for relief from dismissal is now before the Court. No party has filed an opposition to the motion on its substance.

DISCUSSION

Applicable

Law

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473(b).)

"Notwithstanding any other requirements of [section 473], the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any . . . (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (*Id.*, italics added.)

The latter mandatory provision of section 473(b) was added to the statute "to provide relief to the client even when the attorney's mistake or neglect was not excusable." (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682.)

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Analysis

Plaintiff's

unopposed motion is granted.

The

declaration in support of Plaintiff's motion indicates this case "was dismissed without prejudice due to non-service of Defendants County of Los Angeles Health Department and Los Angeles Department of Health and Environmental Services", and proofs of service have now been filed. (Buckholtz Decl., ¶¶ 2-3.) Counsel states that the lapse occurred "because [he] experienced a medical emergency, a stroke, from which [he has] recovered." (Id., ¶ 3.)

The

Court notes that the complaint was not dismissed solely because of failure to serve all defendants; it was also dismissed for Counsel's failure to appear at multiple case management conferences. Nonetheless, Counsel moved promptly to have the dismissal set aside. In the absence of a substantive opposition, the Court is willing to infer that Counsel's health issues also caused his failures to appear as required.

Plaintiff

has demonstrated the dismissal was caused by his counsel's neglect. Relief is mandatory. The motion is granted.

CONCLUSION

Plaintiff Josepff Smith's Motion to Set
Aside/Vacate Dismissal is GRANTED.

Moving

party to give notice.